

24PR00617 Matter of Veronica Corona Special Needs Trust

County: santa-barbara

Division: Trust

Department: 4 SM-Cook

Hearing date: 2026-06-15

Motion: Second Accounting and Report of Trustee

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Tentative Ruling: Matter of Veronica Corona Special Needs Trust

Case Number

24PR00617

Case Type

Trust

Hearing Date / Time

Mon, 06/15/2026 - 08:30

Nature of Proceedings

Second Accounting and Report of Trustee

Tentative Ruling

Probate Notes*

A supplement to the petition must be submitted addressing the following:

Discrepancy no. 1 – The verification is not signed by the trustee. Petition must be verified (PC 1021) & signed by attorney (CCP 128.7). The supplement should contain a copy of the entire petition (without exhibits) and the executed verification page.

Discrepancy no. 2 – There are no income producing investments. The default investment standard for all fiduciaries is the prudent investor rule. (Prob. Code, §16046(a).) In general, the duty to invest extends to accumulated but undistributed income as well as principal. (Lynch v John M. Redfield Found. (1970) 9 Cal.App.3d 293.)

Discrepancy no. 3 – The estate is losing money at a rate that will not support the beneficiary past 2032. The following causes are readily identifiable from the schedules:

Lack of investment. The Trust has no income producing investments.

Excessive fees. Attorneys fees in this case are 7% of the total trust estate. The fees alone will deplete the trust in 14 years.

Discrepancy no. 4 – There is no statement on file for Wells Fargo Advisors Account, ending in 1390. A Court-created and supervised SNT must follow Prob. Code, § 2620, per CRC 7.903. If first accounting, needs both statements from time immediately preceding appointment and the statements for end of closing period of accounting. (Prob. Code, § 2620(c)(2)). If subsequent, just closing date statements. The requisite statements should be lodged with the court separately from the filed supplement.

Discrepancy no. 5 – Attorney's fees (and paralegal fees) exceed the community rate, several entries reflect legal fee rates being charged for clerical work, request for reimbursement for prohibited overhead costs, charge for work that was hired out to an accountant, and are generally excessive for a SNT of this size (7% of the trust corpus).

The rate in this legal community for excellent legal work by an experienced attorney is \$450/hr, unless evidence shows specialized skill was required to perform unusual tasks. That rate is \$200 for paralegals. There is nothing that could be submitted showing specialized skill was required for a simple accounting of a simple SNT that produced no income, and contained a grand total of nine (9) disbursements over the accounting period. The supplement addressing this discrepancy should explain in detail why an accountant was even necessary to produce this elementary accounting, or the accounting fees will be recommended for surcharge.

The overhead costs will be recommended for denial. (Local Rule, 1732(b)).

The supplement addressing this discrepancy should contain a proffer for reduction of the attorney's fee based on the above rates, and contain a reduction of at least 20% for all the status update entries involving internal communications between paralegals and attorney.

*PLEASE NOTE: Probate Notes are not tentative rulings, thus are not the opinion of the court. Probate Notes 1) are of specific procedural discrepancies that must be remedied before the hearings so the case can proceed forward to adjudication, or 2) are detailed legal analyses on foreseeable issues with the merits of the case that the court may address on the date of hearing.

Probate Notes for the North County Courthouse (Santa Maria) venue are posted by the Trial Court Judicial Attorney who reviews all probate cases before their scheduled hearings. Probate Notes for South County Courthouse (Santa Barbara) venue are posted by a Probate Examiner.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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